

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-17

Samsung Electronics America, Inc.

v.

**Orient Overseas Container Line Limited and OOCL (Europe)
Limited**

v.

Samsung Electronics Co. Ltd.

**THIRD-PARTY COMPLAINANTS' MOTION TO
PERMIT ALTERNATIVE SERVICE UNDER FED.
R. CIV. P. 4(f)(3)**

As set forth in its response to the motion to dismiss of Samsung Electronics Co., Ltd. (“SEC” or “Third-Party Respondent”)(Dkt. No. 33)(Feb. 13, 2025), Third-Party Complainant Orient Overseas Container Line Limited (“OOCL”) by its undersigned attorneys, respectfully submits that service under the Commission’s regulations is lawful and, if such service was found to be ineffective, also sought leave to serve SEC pursuant to the Hague Convention. For expedition, however, OOCL hereby respectfully moves, in the alternative, for an order under Fed. R. Civ. P. 4(f)(3) permitting it to effect service by serving Third-Party Respondent’s U.S. legal counsel (Mr. Hohenstein) by email or physical delivery, or for such other alternative means of service as the Presiding Officer may direct. That order would permit the dispute over service

to be resolved promptly and avoid the multi-month delays and excess use of the Commission's resources that would result from service under the Hague Convention.

LEGAL STANDARD

Although the relief sought in this motion is not explicitly prescribed in the Commission's rules, a party may bring such a motion pursuant to the Federal Rules of Civil Procedure as applicable to Commission proceedings pursuant to 46 C.F.R. § 502.12. Fed. R. Civ. P. (4)(h) provides that absent a waiver or federal law to the contrary, a "foreign corporation" must be served "at a place not within any judicial district of the United States, in any manner prescribed by Rule 4(f) for serving an individual, except personal delivery under (f)(2)(C)(i)." Rule 4(f) in turn permits service by several methods, including in subsection (3), "by other means not prohibited by international agreement, as the court orders." Rule 4(f)(3).

"Service of process under Rule 4(f)(3) is neither a last resort nor extraordinary relief. It is merely one means among several which enables service of process on an international defendant." *In re One Apus Container Ship Incident on November 30, 2022*, 22 Md. 3028 (PAE), 2022 WL 17370122, at *1 (S.D.N.Y. Dec. 2, 2022); accord *Rio Props., Inc. v. Rio Intern. Interlink*, 284 F.3d 1007, 1015 (9th Cir. 2002) ("neither a 'last resort' nor 'extraordinary relief.'" (internal citation omitted); *Sec. Exch. Comm'n v. Richman*, 2021 WL 9816612, at *3 (N.D. Cal., July 19, 2021). Importantly, the rule does not require a party to first seek service under the Convention. *Rio Props., Inc. v. Rio Intern. Interlink*, 284 F.3d at 1015; *Dolls Kill, Inc. v. Yunye Apparel Retail Ltd.*, 2023 WL 6192699, at *1 (C.D. Cal., Aug. 16, 2023); *In re One Apus Container Ship Incident on November 30, 2022*, 2022 WL 17370122, at *2; *Sec. Exch. Comm'n v. Richman*, 2021 WL 9816612, at *5; *Carrico v. Samsung Elecs. Co.*, Case No. 15-cv-02087-DMR, 2016 WL 2654392, at *3 (N.D. Cal. May 10, 2016). Service under Rule 4(f)(3) must, of

course, provide sufficient notice to constitute due process. *In re One Apus Container Ship Incident on November 30, 2022*, 2022 WL 17370122, at *1; *Carrico v. Samsung Elecs. Co.*, 2016 WL 2654392, at *3; *Rio Props., Inc. v. Rio Intern. Interlink*, 284 F.3d at 1015 at 1016.

ARUMENT

I. Courts have authorized alternative service under Fed. R. Civ. P. 4(f)(3) on foreign parties in countries who are signatories to the Hague Convention.

Numerous federal courts have permitted service of process under Rule 4(f)(3) on foreign parties whose countries are parties to the Convention to be made by other means, including by service on their counsel in the United States--including for parties located in Korea and in other signatories to the Convention which have objected to service by postal channels under the Convention's Article 10. See e.g., *Compañía de Inversiones Mercantiles, S.A. v. Grupo Cementos de Chihuahua S.A.B. de C.V.*, 970 F.3d 1269, 1294-1295 (10th Cir. 2020) (service on U.S. counsel for Mexican corporation was permissible notwithstanding Mexico's objection to the service methods in Article 10 of the Convention); *Dolls Kill Inc. v. Yunye Apparel Retail Ltd.*, 2023 WL 6192699, at *1 (C.D. Cal., 2023 (permitting service on Chinese Company by email); *Nexon Korea Corp. v. Ironmace Co.*, No. C23-576-MLP, 2023 WL 3599548, at *3 (W.D. Wash. May 23, 2023) (authorizing service on U.S. counsel of Korean company, notwithstanding Korea's objections to the Convention); *In re One Apus Container Ship Incident on November 30, 2022*, 2022 WL 17370122, at *3 (authorizing service on U.S. counsel for South Korean corporation Hyundai Merchant Marine, notwithstanding the Convention); *Sec. Exch. Comm'n v. Richman*, 2021 U.S. Dist. LEXIS 263304, at *15 (permitting service on U.S. counsel, notwithstanding Germany's objections); *Fed. Trade Comm'n v. Repair All PC, LLC*, Case No. 1:17 CV 869, 2017 WL 2362946, at *5 (N.D. Ohio May 31, 2017) (service on U.S. counsel notwithstanding India's objection to Article 10); *Carrico v. Samsung Elecs. Co.*, 2016 WL 2654392, at *4 (authorizing

service on Samsung Electronics Co., Ltd. employee through her attorney, notwithstanding Korea's objections to service methods in the Convention); *In re Cathode Ray Tube (CRT) Antitrust Litig.*, 27 F. Supp. 3d 1002, 1010 (N.D. Cal. 2014) (authorizing service on Chinese company notwithstanding China's objections to Convention's service provisions). As the Tenth Circuit held in *Compañia*, that a country "does not authorize service methods beyond the use of that country's central authority" is of no matter, because such alternative methods—in *Compañia*, service on U.S. counsel—is not "prohibited" by the Convention. *Compañia*, 970 F.3d at 1294.

II. Authorization for alternative process under Fed. R. Civ. P. 4(f)(3) should be granted.

Whether to authorize service under Rule 4(f)(3) rests in the tribunal's discretion. In *re One Apus Container Ship Incident on November 30, 2022*, 2022 WL 17370122, at *1; *Sec. Exch. Comm'n v. Richman*, 2021 WL 9816612, at *3. COSCO respectfully submits that if the Presiding Officer determines that service was not effectively accomplished through the Commission, the Presiding Officer should exercise her discretion to authorize service on the Third-Party Respondent's U.S. counsel (Mr. Hohenstein) to avoid the delays that would otherwise occur under the Convention. There is no reason for the Commission and the parties to expend the additional resources that would be required for the piecemeal litigation of the claims in this proceeding.

Moreover, there can be no question that service on Third-Party Respondent's counsel would constitute due process. Third-Party Respondent's counsel has been aware of this action since January 17, 2025, when the Secretary's office included him on an email regarding service of the Third-Party Complaint. See email dated January 17, 2025, attached hereto as Exhibit A. It cannot be said that Third-Party Respondent is not aware of the claims against them, or that Mr.

Hohenstein lacks the ability to provide it with another copy of the Third-Party Complaint and the Commission's notice. *Nexon Korea Corp. v. Ironmace Co.*, 2023 WL 3599548, at *3 (when the defendant "receives notice of the suit through counsel, its highest-level employees... are highly likely to also be apprised of the suit" which "comports with due process."); *Carrico v. Samsung Elecs. Co.*, 2016 WL 2654392, at *4 (finding service on defendant's U.S. counsel was "reasonably calculated to provide actual notice" to defendant in accordance with due process).

Finally, notwithstanding Third-Party Respondent SEC's appearance in scores of actions in the U.S. (see e.g., Decl. of Stacey Normington, Ex. A in *Samsung Elecs. America Inc. v. Orient Overseas Container Line, Limited et al.*, Dkt. No. 24-17, 2025 WL 516252 at *2 (FMC Feb. 13, 2025)), and the action brought by its subsidiary SEA, Third-Party Respondent has refused to waive or accept service. See email dated June 24, 2025 from J. Hohenstein, attached hereto as Exhibit B. The motion for alternative service under Rule 4(f)(3) should be granted. See *Dolls Kill Inc. v. Yunye Apparel Retail Ltd.*, 2023 U.S. Dist. LEXIS 173483, at *2-3 (authorizing alternative service where service under Convention would cause delay); *Nexon Korea Corp. v. Ironmace Co.*, 2023 WL 3599548, at *3 (authorizing alternative service where service in Korea under the convention would take 4-6 months); *In re One Apus Container Ship Incident on November 30, 2022*, 2022 WL 17370122, at *3 (authorizing service on U.S. counsel where defendant rejected the request to waive service and service in Korea under the Convention "would take 6-to-8 months").

CONCLUSION

For the foregoing reasons, OOCL respectfully requests that the Presiding Officer enter an order permitting it to serve Third-Party Respondent by alternative service pursuant to Fed. R. Civ. P. 4(f)(3).

Dated: June 24, 2025

Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that on the 24th day of June, 2025, a true and correct copy of the foregoing document, **Third-Party Complainant's Motion for Alternative Service**, was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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